

Saurabh Agarwal v. State of U.P. And 3 Others

Allahabad High Court · Division Bench · 9 July 2026 · 2026:AHC:137492-DB · Writ - C No. 25795 of 2026 · **Writ disposed of; petitioner relegated to Section 127 appeal with extra Rs.10 lakh deposit; no coercive action pending appeal**

HEADNOTE

Where a consumer, after a prior writ had directed a de novo representation and final assessment (with a 25% deposit) in place of an unused Section 127 appeal against Section 126 assessments, challenges the assessing officer's rejection of that representation, the High Court will not entertain a second writ. The statutory appeal under Section 127 of the Electricity Act, 2003 to the Divisional Commissioner remains the remedy. The petition is disposed of with a direction to file that appeal within three weeks together with a bank draft of Rs. 10 lakhs in addition to the 25% already deposited; the appellate authority is to decide it preferably within two months; and no coercive action is to be taken on the impugned order until the appeal is disposed of. The Court did not examine the merits of the assessment.

FACTUAL SUMMARY

Saurabh Agarwal petitioned to quash the order dated 7 March 2026 of the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd., Agra. That order rejected a representation he had filed after Writ C No. 10132 of 2025 was disposed of on 24 April 2025. In the earlier writ he had challenged orders dated 19 June 2023 and 23 June 2023 said to have been passed under Section 126 of the Electricity Act, 2003 read with the Electricity Supply Code, a purported final assessment notice dated 20 October 2023 (Patrank No. 5865/V.V.Kh./bah), and a demand notice dated 25 November 2024, without appealing under Section 127 because a 50% deposit was required.

The 2025 Division Bench stayed the demand for a limited period, directed a fresh representation to the assessing authority with a 25% deposit, a hearing, and a reasoned order to be treated as the final assessment, and restrained coercive measures. The petitioner deposited 25%. The representation was then rejected, prompting this second writ. The electricity department objected that a Section 127 appeal to the Divisional Commissioner remained available.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

Writ against a court-directed final s.126 assessment declined; consumer relegated to s.127 appeal

QUESTION

After a prior writ has substituted a representation and de novo final assessment for an unused Section 127 appeal, may the consumer challenge the assessing officer's rejection of that representation by a second writ?

HOLDING

No. The 24 April 2025 order in Writ C No. 10132 of 2025 had, in place of a Section 127 appeal, directed a representation to the assessing authority, a 25% deposit, a hearing, and a reasoned order to be treated as the final assessment. That representation was rejected by the Executive Engineer's order dated 7 March 2026. The Court held that a statutory appeal under Section 127 to the Divisional Commissioner remained available and that the petition was liable to be dismissed on that ground. It disposed of the writ directing the petitioner to file that appeal within three weeks with a bank draft of Rs. 10 lakhs in addition to the 25% already deposited; the appellate authority is to consider and decide it expeditiously, preferably within two months of receipt; and no coercive action is to be taken on the impugned order until the appeal is disposed of. ¶ 3, 5-8

QUALIFIER

The 7 March 2026 order is the court-directed final assessment after the 24 April 2025 representation route; the original 2023 orders were under Section 126 read with the Supply Code.

FLAG The Court cited only Section 127, not a Supply Code clause (6.8 or 8.1). The extracted 2025 order referred to Section 126 'read with the Electricity Supply Code' without a numbered clause. Two paragraphs are numbered 3. Para

7's 'If it is so' conditions the two-month appellate timeline on filing the appeal with the Rs. 10 lakh draft. The statutory 50% pre-deposit under s.127(2) was not construed; the Court specified Rs. 10 lakhs plus the existing 25%.

PRINCIPLE TAGS

alternative-remedy-relegation A second writ against the assessing officer's rejection of a court-directed representation, after that representation had been substituted for an unused s.127 appeal, is declined because the statutory appeal remains available. ¶ 3, 5-7

relegate-to-statutory-remedy The consumer is directed to appeal under Section 127 to the Divisional Commissioner within three weeks, with a bank draft of Rs. 10 lakhs in addition to the 25% already deposited, the appeal to be decided preferably within two months. ¶ 7

recovery-of-assessment-stayed-pending-s127-appeal Till disposal of the Section 127 appeal, no coercive action is to be taken on the impugned Executive Engineer order. ¶ 8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE 7 MARCH 2026 ORDER AND OF THE UNDERLYING SECTION 126 ASSESSMENTS AND DEMAND

Left to the Divisional Commissioner on the Section 127 appeal. The Court expressed only a prima facie view that the writ was barred by the alternative remedy. ¶ 6-7

NOT DECIDED — WHETHER THE STATUTORY 50% PRE-DEPOSIT UNDER SECTION 127(2) APPLIED

The 2025 order had recorded that the consumer had not appealed because a 50% deposit was required, and had substituted a 25% deposit for a representation. This Court specified an additional Rs. 10 lakh bank draft without construing Section 127(2). ¶ 3, 7